

HOUSE No. 3871

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly W. Pease

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing amending, updating, and aligning the Commonwealth's definition of veteran.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>1/7/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/9/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/28/2025</i>
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>3/17/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>4/5/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>9/17/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/9/2025</i>

HOUSE No. 3871

By Representative Pease of Westfield, a petition (accompanied by bill, House, No. 3871) of Kelly W. Pease, Dennis C. Gallagher and Kenneth P. Sweezey relative to the definition of veteran. Veterans and Federal Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing amending, updating, and aligning the Commonwealth's definition of veteran.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7, 43rd clause of Chapter 4 of the General Laws, is hereby amended
2 by striking the 43rd clause in its entirety and inserting in its place the following:

3 Forty-third, "Veteran" shall mean (1) a person who served on active duty in the
4 Uniformed Services or on full time national guard or reserve duty, under Titles 10 or 32 of the
5 United States Code or under sections 38, 40 and 41 of chapter 33, and (2) who was discharged or
6 released therefrom under conditions other than dishonorable; (3) a member of the American
7 Merchant Marine who served in armed conflict between December 7, 1941 and December 31,
8 1946, and who was discharged or released therefrom under conditions other than dishonorable;
9 (4) a member of the reserve component who has served s minimum of six years as an active
10 drilling member of the reserve component; or (5) any person who served in the Uniformed
11 Services, and was awarded a service-connected disability by the U.S. Veterans Administration or
12 who died in such service under conditions other than dishonorable shall be deemed a veteran.

“Active Duty” shall include (1) full time service; and (2) any period of active or inactive duty for training during which the individual was disabled or died.

“Armed Forces” shall include army, marine corps, navy, air force, space force, coast guard and any additional military service created by the U.S. Department of Defense including reserve components thereof.

“Uniformed Services” shall include armed forces, commissioned corps of the public health service and commissioned corps of the national oceanic and atmospheric administration. None of the following shall be deemed to be a "veteran":

(a) Any person who at the time of entering into the armed forces of the United States had declared his intention to become a subject or citizen of the United States and withdrew his intention under the provisions of the act of Congress approved July ninth, nineteen hundred and eighteen.

(b) Any person who was discharged from the said armed forces on his own application or solicitation by reason of his being an enemy alien.

(c) Any person who has been proved guilty of willful desertion.

(d) Any person whose only service in the armed forces of the United States consists of his service as a member of the coast guard auxiliary or as a temporary member of the coast guard reserve, or both.

(e) Any person whose last discharge or release from the armed forces is dishonorable.